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File No.: EXP202206653

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On May 30, 2022, a complaint was filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U., with NIF A80907397 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that when attempting to request a financial product, it was denied because their data appears in common credit information systems in relation to a debt with the complained company associated with a non-existent contract. They provide a police report, a complaint made to the company, a copy of the associated contract, and a report on the inclusion of their data in ASNEF at the request of the complained party, dated October 11, 2021.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on June 13, 2022, as stated in the certificate in the file.

On July 22, 2022, the complained entity responded to the forwarding indicating the following:

The debt originates from a contract not recognized by the complainant. They inform that they could not know at the time of purchase that a service contract was being made without the complainant's consent since this type of management is subject to the overcoming of the Security Policy, understanding that, when the contract was made, it was legal, consented, and appeared to be truthful. They state that this is indicative of a third party having taken the complainant's personal data without their consent to access their online user, a fact that the complained party indicates they cannot know. They point out that the complainant contacted the entity stating that they did not recognize the services as their own, and thus on October 18, 2021, the operation was declared fraudulent, the contracted services were deactivated, the owed amount was canceled, and their personal data was excluded from credit information systems. They provide copies of corrective invoices and of payment or cancellation of amounts. They indicate that, however, subsequently, the complainant has raised the complaint before the Agency.

They attach to the response to the forwarding of the complaint a technical report detailing actions for the case of the portability of the line ending in 58, with a request date of July 12, 2019. They indicate as the identification of the registration channel "Online store," and it appears as the seller "MARKTEL DELIO MAD," with type "VF-ONLINE" and as the reason for sale "TELEPHONE ATTENTION." It is recorded as associated with a deferred payment of 15 euros/36 months for the acquisition of the Samsung Galaxy S10E 128 GB terminal. The report states that charges related to service and terminal were canceled from activation on July 18, 2019, until deactivation on July 5, 2020.

THIRD: On August 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

Analysis of documentation provided by the complainant:

They provide duplicates of two contracts with VODAFONE that they claim are fraudulent:

- Telephone line ending in 52, portability contract with a change of holder, with the complainant listed as the customer, a third person as the new holder, and recorded as the point of sale name "Vodafone

telemarketing CBU," dated March 20, 2019.

- Telephone line ending in 58, portability contract, with the complainant listed as the customer, recorded as the point of sale name "MARKTEL DELIO MAD," dated July 12, 2019.

Regarding the inclusion in ASNEF.

Requested from EQUIFAX IBERICA, S.L., information and documentation about the affected party and their inclusion in the ASNEF information file, from the response received the following is inferred:

There is no active information about the affected party in the ASNEF file at the time of the checks (February 6, 2023). It is recorded that

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Cancellation of an operation reported by VODAFONE SERVICIOS, S.L., with a cancellation date of October 18, 2021. The registration date in the file was February 25, 2021, and the viewing date was March 27, 2021 (the date on which the default data can be consulted in the file by the associated entities). There was an unpaid amount of 643.37 euros.

Regarding the contracts not recognized by the claimant.

Regarding the first portability, requested by telephone, the responding party provides a copy of the telephone conversation of the contract in a wav file (audio file) named

6670474254046265846_03202019141552 in which the agent attending the call mentions that the date of the day is March 20, 2019, and the object is a line portability. It is verified that the agent informs that only the line holder can carry out the procedure, asks the interlocutor for the name and surname of the holder and their ID number, and the interlocutor mentions the name and surname of the claimant and their ID including the control letter. Subsequently, the agent reads the conditions and characteristics of the service, mentions the number of the line to be ported, which is verified to match the claimed line (ending in 52), mentions the data protection rights, requests consents for certain treatments, and the interlocutor responds affirmatively to the question of whether they agree.

Regarding the second portability, which resulted in inclusion in ASNEF, the responding party indicates that they are in a position to confirm that the order for installation with portability and terminal was made on July 18, 2019. They indicate that, in this regard, concerning the request for evidence of the verification of the identity of the applicant, they have evidence of the formalization of the service contract carried out by electronic means after sending the contract to the claimant's telephone line. They provide a copy of a certificate from a third party, DIGITEL ON TRUST SERVICES, S.L., indicating that it operates in the market in its capacity as a Trusted Third Party in accordance with the provisions of Article 25 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce.

The document certifies that an SMS was sent on July 12, 2019, at 12:41 PM to the end user, with an identity document number that is verified to match the claimant's ID number, and a mobile phone number that matches the line subject to portability (ending in 58), informing of the portability request, and asking for a response of "YES" if correct. It is also certified that the response "YES" was received from the line to be ported, with an SMS message sent on July 12, 2019, at 1:30 PM.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of

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The Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), grants competence to resolve these investigative actions to the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

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III

Legitimacy for Data Processing

For its part, Article 6.1 of the GDPR establishes the following:

"The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

V

Inclusion in Asset Solvency Files

In relation to the inclusion of your personal data in common asset solvency and credit files, it is important to consider what is established in Article 20, Credit Information Systems, of the Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), which states in its first point that:

"1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, due, and enforceable debts, the existence or amount of which has not been the subject of administrative or judicial claim by the debtor or through an alternative dispute resolution procedure."

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binding between the parties.

- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which it participates.

The entity that maintains the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.

- d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.

e) That the data related to a specific debtor can only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

- f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system shall inform the affected party of the result of that consultation."

VI

Conclusion

Regarding the fraudulent contracting by the respondent party, it appears that they did so by means of telephone contracting of one line and electronic contracting of the second, thus legitimizing their processing. Additionally, once they had sufficient evidence of a possible fraudulent act, they proceeded to freeze the use of such data, also halting any possible recovery action.

The personal data of the claimant was included in a common solvency file (ASNEF) as a result of defaults occurring in a line portability contract with an associated mobile terminal, made in July 2019. The respondent party has provided a copy of the recording of the call for the portability request dated March 2019, and for the online request with telephone assistance from July 2019, which generated the inclusion in ASNEF, a third-party certificate certifying the sending of a confirmation SMS message from the line to be ported by the applicant.

The respondent party states that the claimant's data was excluded from the ASNEF credit information file on October 18, 2021, a fact that has been verified.

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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